

		(c) When the convenience of witnesses and the ends of justice would be promoted by the change.” <u>Application:</u> Although Defendants have performed legal services related to Orange County litigation, Plaintiffs have not shown Defendants “contracted to perform an obligation in a particular county...” Based on the language of the statute, this is a precondition for any of the contract-based venue provisions of section 395. While Defendants generally agreed to represent Plaintiffs, Plaintiffs have not shown the contract specified that work was to be performed in “a particular county,” i.e. Orange County. Moreover, the statute states that generally, the county “where the obligation is incurred is the county where it is to be performed,” and here the parties’ contract was entered or “incurred” in San Diego. Therefore, Plaintiffs have not shown there is a contractual basis for venue in Orange County.
10	State Farm General Insurance Co., v. LG Electronics U.S.A., Inc. 2025-01464236 Motion for Summary Judgment/Adjudication	Defendant LG Electronics U.S.A., Inc.’s motion for Summary Judgment or, in the alternative, Summary Adjudication as to the claims alleged in State Farm General Insurance Company’s Complaint is DENIED without prejudice. The proof of service fails to show the moving papers were served on Plaintiff. (ROA 22.) According to the proof of service, Defendant used a messenger service to serve the moving papers on the Plaintiff. However, the proof of service only shows that the moving papers were provided to a messenger service for service on April 23, 2026. Although a Declaration of Messenger is attached to the proof of service, it is blank and neither dated nor signed by any messenger. Therefore, Defendant has failed to show the moving papers were served on Plaintiff by the messenger service. Moving Defendant to give notice.